

Patiram Singh v. State of U.P. — clause 6.5 billing representation to be decided

High Court of Judicature at Allahabad · Division Bench · 5 September 2022 · WRIT - C No. - 24727 of 2022 · **Writ disposed; EE to decide clause 6.5 representation within one month**

HEADNOTE

On an innocuous prayer in a billing dispute, the Division Bench disposed of the writ by directing the Executive Engineer to decide the consumer's pending clause 6.5 representation dated 5 July 2022 strictly in accordance with law by a reasoned speaking order, preferably within one month. The Court did not examine the merits of the bills.

FACTUAL SUMMARY

Patiram Singh filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and two others, including the Executive Engineer, over electricity bills raised by the distribution licensee. He had already submitted a representation dated 5 July 2022 to that Engineer under clause 6.5 of the Electricity Supply Code, 2005, objecting to the bills. At the hearing, counsel pressed only for a direction that the Engineer decide the representation within a stipulated period. Counsel for the licensee appeared.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending clause 6.5 billing representation

HOLDING

Where a consumer has already filed a clause 6.5 representation before the Executive Engineer against bills raised by the licensee and presses only for a time-bound decision, the writ court will dispose of the petition by directing that Engineer to decide the objections strictly in accordance with law by a reasoned speaking order within a stipulated period. ¶ 1

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided Pending clause 6.5 representation dated 5 July 2022 directed to be decided by the Executive Engineer by a reasoned speaking order, preferably within one month. ¶ 1

clause-6.5-alternate-remedy-to-writ Writ disposed without examining billing merits; consumer remitted to the pending clause 6.5 statutory process before the Executive Engineer. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILLS AND MERITS OF THE CLAUSE 6.5 OBJECTIONS

Court did not examine the billing dispute; directed the Executive Engineer to decide the representation in accordance with law. ¶ 1